

Court No. - 46

Case :- WRIT - C No. - 20108 of 2020

Petitioner :- R.S.M Inter College And Bholarampur

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Madan Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard learned counsel Shri Madan Singh appearing for the petitioner, learned Standing Counsel for the respondent nos.1 & 4 and Sri Deepak Kumar Pandey, Advocate holding brief of Shri Pranjal Mehrotra representing the respondent nos.2 & 3.

The instant petition has been filed with the following relief:

I- To issue a writ, order or direction in the nature of certiorari to quash the recovery citation dated 28.2.2020 for Rs.1,66,802+5 Talwana issued by respondent no.4 as well as demand notice dated 1.2.2018 issued by respondent no.2;

II- To issue a writ, order or direction in the nature of mandamus directing the respondents not to take any coercive action against the petitioner regarding the recovery citation dated 28.2.2020 for Rs.1,66,802+5 Talwana issued by respondent no.4 as well as demand notice dated 1.2.2018 issued by respondent no.2;

III- To issue a writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the present case;

IV- To award the cost of the petition in favour of the petitioner.

Learned counsel for the respondent nos.2 & 3 has raised a preliminary objection that the petitioner has an alternative remedy under Clause 7.10 of UP Electricity Supply Code, 2005 of filing a complaint before the Electricity Consumer Grievance Redressal Forum.

Learned counsel for the petitioner does not dispute the existence of the alternative remedy.

Considering the submission of learned counsel for the respondent nos.2 & 3, we are of the view that disputed question of fact involved in this petition cannot be entertained by this Court in exercise of extra ordinary jurisdiction under Article 226 of the Constitution of India.

However, it is provided that if the petitioner is still aggrieved by the decision taken by the Power Corporation, he may avail alternative remedy as provided under Clause 7.10 of U.P. Electricity Supply Code, 2005.

The present petition stands disposed of.

Order Date :- 2.12.2020

M. Tariq